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CASE NAME: Alarcon, v. Uber Technologies, Inc., et al.

CASE NO.: 26SMCV01025

MOTION: Motion to Strike Punitive Damages

HEARING DATE: 7/30/2026

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Civil Code section 3294 defines malice as conduct "intended by the defendant to cause injury to the plaintiff," or "despicable conduct which is carried on by the defendant with a willful and conscious

disregard of the rights or safety of others.” Despicable is a powerful term used to describe circumstances that are “base,” “vile,” or “contemptible.” (Coll. Hosp. v. Superior Ct. (1994) 9 Cal.4th 704, 726.) The statute “plainly indicates that absent an intent to injure the plaintiff, “malice” requires more than a “willful and conscious” disregard of the plaintiffs’ interests. The additional component of “despicable conduct” must be found.” (Id.) Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.) Specific facts must be pleaded in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-92.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant Uber

Technologies Inc. moves to strike the request for punitive damages in Plaintiffs Jose Alarcon and Rafael Alarcon’s Complaint. Defendant Harrison Schneider joins the motion to strike.

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Complaint alleges that Plaintiffs sustained personal injuries arising from a March 31, 2025, traffic collision. (Compl., ¶ 1.) Plaintiff J. Alarcon was operating a motor vehicle on La Cienega Blvd., with R. Alarcon in the front passenger seat of the vehicle. (Id., ¶ 10.) Schneider negligently and carelessly operated his motor vehicle by failing to maintain a proper lookout, failing to check for the presence of other vehicles, failing to slow down, failing to yield the right-of-way to oncoming traffic, failing to stop at a stop sign, and making an unsafe left turn. (Id., ¶¶ 11, 14, 19, 23, 27.) As a result, Schneider’s motor vehicle collided with Plaintiffs’ vehicle, causing severe injuries to Plaintiffs. (Ibid.) Schneider was operating a motor vehicle and an agent and/or under the course and scope of

his employment with Uber. (Id., ¶ 31.) Plaintiffs allege two causes of action for negligence against Defendants and negligent hiring, supervision, or retention against Uber.

In support of its allegation of malice, the Complaint alleges that Schneider was inappropriately distracted in the moments leading up to the subject incident, failed to stop at a stop sign, and failed to yield to oncoming traffic. (Id., ¶ 33.) The Complaint alleges a conclusion that such conduct constitutes malice as it was despicable and done with a willful knowing disregard of the safety of another. (Id.) However, the Complaint alleges no supporting facts that such conduct was despicable and done with a willful or knowing disregard of others' safety. The factual allegations of failing to yield to oncoming traffic, failing to stop at a stop sign, and making an unsafe left turn establishes only negligence, instead of a despicable conduct warranting imposition of punitive damages. (See *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-895, 899-900 [ordinarily, punitive damages require more than the mere commission of a tort; routine negligent or even reckless disobedience of traffic laws would not justify such an award].)

Uber correctly notes that the Complaint fails to meet the standard for imposition of punitive damages against a corporate employer. (Civ. Code § 3294(b).) The Complaint only offers conclusions that Schneider's acts and omissions were authorized, ratified, or committed by Defendants' officers, directors, and/or managing agents. (Compl., ¶ 9.) There are no facts supporting the conclusion that Defendants' officers, directors, and/or managing agents were aware that Schneider was or became unfit, which created a particular risk to others. (Id. ¶¶ 37-40; see *Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902 [elements of negligent hiring, supervision include].) Thus, further facts would also be required to establish Uber's liability for punitive damages.

Accordingly, the motions to strike are GRANTED. Plaintiffs have proffered no further facts which might show despicable conduct or Uber's liability as a corporate defendant. Leave to amend will only be granted if Plaintiffs proffer sufficient facts at the hearing to show that Schneider and Uber engaged in despicable conduct, as well as facts supporting the conclusions concerning Uber's officers, directors or managing agents.